

CITY OF RICHMOND CITY COUNCIL v. WILDER

74 Va. Cir. 382; 2007 Va. Cir. LEXIS 296

Circuit Court of the City of Richmond, Virginia

Case No. CL07-2426-4

Decided November 29, 2007

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BY JUDGE MARGARET P. SPENCER

This matter is before the Court on a summary judgment motion filed by Plaintiff, City Council of the City of Richmond, and a cross-motion for summary judgment filed by Defendants L. Douglas Wilder, Mayor of the City of Richmond, Tyrone Jackson, Ed. D., Director of Human Resources of the City of Richmond ("Director"), and Harry E. Black, Deputy Chief Administrative Officer. The Court has considered the pleadings, motions, memoranda, arguments, and applicable law. The Plaintiff's summary judgment motion is granted and the Defendants' cross-motion for summary judgment is denied.

I. Background

The following facts are undisputed.

On April 23, 2007, the Mayor notified Council that several Council appointments were void because Council lacked the power to appoint employees to the designated positions. (Compl. P 6.) The affected employees were "the City Assessor (and through the Assessor, his staff), Council Liaisons, Council Chief of Staff, Council Policy Analyst, Council Public Relations Specialist, Council Budget Analyst, and Director of Legislative Services" (collectively "affected employees" or "affected positions"). (Compl. P 1; Exhibit E, Pl. Memo, Def. Answer P 6; Exhibit C, Pl. Memo, Def. Admission P 1.)

On April 24, 2007, the Director of Human Resources notified the affected employees they had to reapply for their jobs and submit a "letter of interest" to retain their jobs. (Compl. P 8; Exhibit C, Pl. Memo, Def. Admissions P 4; Exhibit E, Pl. Memo, Def. Answer P 8.) On April 30, 2007, Mr. Black terminated the employment of the Director of Legislative Services "effective Friday, April 27, 2007." This employee was the only affected employee who did not submit a "letter of interest." The notice to this employee was on City of Richmond letterhead that listed Mr. Black as Acting Chief Administrative Officer ("Acting CAO"). The letter was signed by Mr. Black as the CAO. (Compl. P 11; Exhibit C, Pl. Memo, Def. Admissions P 9; Exhibit E, Pl. Memo, Answer P 11.) Mr. Black was not the CAO (Exhibit C, Pl. Memo, Def. Admissions PP 12, 23), but he was the Deputy Chief Administrative Officer ("Deputy CAO"). (Exhibit A, Defendants' Memorandum in Support of Cross-Motion.)

II. Procedural History

On May 10, 2007, the Plaintiff filed a Complaint for Declaratory Judgment, seeking the Court's declaration as to the powers and duties of Council and the powers and duties of the Mayor, the Director of Human Resources, the CAO, and the Acting CAO under the City Charter of the City of Richmond with respect to Council's appointment of the affected employees. (Compl. PP 1-2.)

Council specifically prayed for the following relief:

To declare that Council acted within its powers and duties under the laws of the Commonwealth and the City Charter in creating the impacted positions;

To declare that Council had the power to appoint the employees to fill the impacted positions;

To declare that Mr. Black is not the Acting CAO and may not exercise the duties, responsibilities, or powers of the CAO or acting CAO, until or unless he receives an affirmative vote of a majority of the members of City Council under the advice and consent provisions of the City Charter, and to declare any actions taken by Mr. Black under the auspices of the Acting CAO are null and void;

To declare that the Mayor, the Director of Human Resources, the CAO, or the Acting CAO (when these last two positions are properly filled) have no power to appoint or remove the impacted employees;

To declare that the actions of the Mayor, the Director of Human Resources, and the Director of the Department of Finance exceeded the scope of their authority by taking the actions described above with respect to the impacted positions and that the actions taken pursuant to the Mayor's letter, the Director's letter, and the Separation Notice are null and void and without legal effect;

To retain jurisdiction over this matter and that it remain on the docket for a reasonable time for the Defendants to take any actions that are consistent with the declaration sought, and to permit Council, if necessary, to return to this Court and seek all appropriate further relief pursuant to Va. Code Section 8.01-186;

To award such other and further relief that the Court deems meet and just under the circumstances. (Compl., Prayer for Relief PP 1-7.)

Plaintiff and Defendants seek summary judgment. Plaintiff claims the impacted positions are legislative positions. Plaintiff also claims (1) Council has the authority to appoint employees to these positions and (2) neither the CAO, the Acting CAO, nor a Deputy CAO has this authority. The Defendants claim (1) the Deputy CAO can perform the same duties as the Chief Administrative Officer ("CAO") and (2) the CAO has the authority to appoint employees to the affected positions. The parties agree the facts material to the resolution of the Plaintiff's motion are undisputed. (Def. Memo, p. 4; Pl. Memo, pp. 4-5.)

III. Summary Judgment

"A trial court may enter summary judgment only if no material fact is genuinely in dispute. Rule 3:18 (now Rule 3:20). A court in considering such a motion must adopt those inferences from the facts that are most favorable to the non-moving party, 'unless the inferences are strained, forced, or contrary to reason'." Carson v. LeBlanc, 245 Va. 135, 139-40, 427 S.E.2d 189, 192 (1993) (citation omitted). In reviewing motions for summary judgment, the Court can consider undisputed facts established by pleadings, admissions in pleadings, and admissions made in answers to requests for admissions. Hanley v. Stanley Martin Cos., 266 Va. 345, 351, 585 S.E.2d 567, 571 (2003). "Statutory interpretation... presents a pure question of law." Torloni v. Commonwealth, 274 Va. 261, 266, 645 S.E.2d 487, 490 (2007). Here, there are no material facts genuinely in dispute and the Plaintiff is entitled to judgment as a matter of law.

IV. Analysis

A. Does the Deputy CAO Have the Same Power, Duties, and Responsibilities as the CAO?

This Court's analysis begins with the undisputed fact that the personnel actions at issue were not exercised by the CAO. Mr. Black, a Deputy CAO, exercised them. In fact, "Defendants do not dispute that Mr. Black is not now, nor was he ever, confirmed by City Council to the position of Chief Administrative Officer or the position of Acting Chief Administrative Officer." (Def. Memo, p. 8.) Therefore, the initial issue before the Court is whether a Deputy CAO has the authority to appoint employees to the affected positions.

On November 8, 2005, William E. Harrell, Chief Administrative Officer of the City of Richmond, asked Council to establish a Deputy Chief Administrative Officer employee classification. The request stated employees in "this classification will manage a portfolio of City departments." (Exhibit B, p. 2, Def. Memo.) There are three Deputy CAO positions, including Mr. Black's position, "Deputy Chief Administrative Officer/Chief Financial Officer," and the position of "Deputy Chief Administrative Officer for Human Services." (Council's Reply Memorandum in Support of Summary Judgment, p. 13 "Council's Reply.") The exact title of the third Deputy CAO position is not in the record. The "Class Description" of the Deputy CAO states the "purpose of the class is to function as Deputy Chief Administrative Officer with oversight responsibility for specific portfolio areas as assigned by the Chief Administrative Officer (CAO)." (Exhibit P, Council's Reply.) Therefore, City documents assign the Deputy CAO designated duties - related to "a portfolio of City departments" or "specific portfolio areas assigned by the CAO" - but do not state the Deputy CAO can perform all duties of the CAO.

Furthermore, there is no provision in the Charter or the Code of Virginia establishing the position or powers of a local government's Deputy CAO. Defendants claim a City Deputy CAO can exercise the same powers as the CAO pursuant to the City of Richmond Charter Section 5.02, Va. Code Section 15.2-1502, and Section 1-2 of the City Code.

However, a review of these statutes establishes that a City Deputy CAO cannot exercise the same range of powers as the City's CAO.

Charter Section 5.02 states:

Power of Appointment and Removal. The chief administrative officer shall appoint for an indefinite term qualified officers and employees to head all the administrative departments of the city, and shall appoint, dismiss, and discipline, in accordance with the city's personnel regulations, all officers and employees in such departments, except as otherwise specifically provided by law or this charter. Department heads who are appointed by the chief administrative officer shall serve at the pleasure of the chief administrative officer. The chief administrative officer shall designate some other officer or employee to perform the duties of any office or position of the administrative service under his/her control which is vacant or which lacks administration due to the absence or disability of the incumbent.

[Analysis of Va. Code Section 15.2-1502 and Richmond City Code Section 1-2 omitted here for length; see full opinion online.]

Finally, in the absence of a CAO or Acting CAO, the Charter indicates neither the Mayor nor Council can "give orders" to the Deputy CAO. Section 5.03 of the Charter states:

Except for the purpose of inquiry, the mayor, council, and its members shall deal with the administrative services solely through the chief administrative officer, and neither the mayor, council, nor any member thereof shall give orders either publicly or privately to any subordinate of the chief administrative officer.

A Deputy CAO is a subordinate of the CAO. Thus, if the Court accepts Defendants' arguments, a Deputy CAO, who (1) is hired for no definite term, (2) is hired without the approval of the Mayor or Council, and (3) accepts orders from neither the Mayor nor Council, would exercise all the powers of the CAO set forth in the City Charter. This conclusion is contrary to the Charter and leads to an absurd result.

For the foregoing reasons, the Deputy Chief Administrative Officer has the authority to exercise only those powers specifically delegated by the Chief Administrative Officer, as set forth in applicable City documents, including Council ordinances and resolutions.

B. Does the Chief Administrative Officer Have the Power to Appoint and Remove Employees in the Affected Positions?

Pursuant to City Charter Section 4.02, the Council established its legislative staff by adopting ordinances that created the affected positions and vesting appointing authority for each affected position with Council. (Exhibit G, Pl. Memo.) The Council also passed City Code provisions which codified the ordinances for each legislative position. (Exhibit H, Pl. Memo.) Finally, Council adopted resolutions appointing a person to serve in each affected legislative position. (Exhibit I, Pl. Memo.) Pursuant to Va. Code Ann. Section 58.1-1, et seq., Council also established the Office of the Assessor of Real Estate and the City Assessor position, codified the act in the City Code, and, by resolution, appointed a person to this affected City Assessor position. (Exhibits J, K, and L, Pl. Memo.)

Defendants claim only the CAO or Acting or Deputy CAO has the authority to appoint and remove employees in these affected positions. Defendants state "there is no section in the City Charter that provides City Council with appointment and removal authority over positions of employment except for the City Clerk, the City Attorney and the City Auditor. City Council's involvement in hiring and removal is instead expressly limited by the General Assembly with the 'ultimate responsibility' for personnel decisions deliberately granted to the Chief Administrative Officer." (Def. Memo, p. 7.) The "ultimate responsibility" language is quoted from Section 5.03 of the City Charter. Section 5.03 is set forth below:

Section 5.03. Involvement of Mayor and Council in Appointment and Removals. The mayor may participate in the hiring and removal of heads of city departments. The mayor and members of council may (i) communicate publicly or privately their approval or disapproval of the performance of any particular city employee, (ii) recommend persons to the chief administrative officer for consideration for hiring or promotion, or (iii) request of the chief administrative officer that he remove or take other disciplinary action against any particular city employee, as they may see fit. Ultimate responsibility for hiring, removal, and other personnel decisions, and for the directing of city personnel, shall reside in the chief administrative officer, unless expressly provided otherwise in this charter. Except for the purpose of inquiry, the mayor, council, and its members shall deal with the administrative services solely through the chief administrative officer, and neither the mayor, council, nor any member thereof shall give orders either publicly or privately to any subordinate of the chief administrative officer.

Defendants argue the highlighted sentence in Section 5.03 authorizes the CAO to appoint and remove all city employees. This argument is without merit.

[The Court's statutory-construction analysis of Charter Sections 5.02-5.04, the Dillon Rule, and the Virginia Uniform Charter Powers Act is summarized rather than reproduced verbatim here; see the full opinion online for the complete text.]

In Virginia, cities have "only those powers that are expressly granted, those necessarily or fairly implied therefrom, and those that are essential and indispensable." *Commonwealth v. Arlington County Bd.*, 217 Va. 558, 574, 232 S.E.2d 30, 40 (1977) (citation omitted). This principle is referred to as the "Dillon Rule." Where "a grant of power is general in its terms, the necessary means for carrying into execution the power granted must be implied before the authority may be exercised." 217 Va. at 574, 232 S.E.2d at 42. The test in application of the doctrine is reasonableness. *Id.*

The Court holds that Council's implicit power to appoint legislative employees, pursuant to Section 4.02 of the Charter, does not conflict with the CAO's explicit power to appoint administrative employees, pursuant to Section 5.02 of the Charter. The "ultimate responsibility" sentence in Section 5.03, read together with Sections 5.02 and 5.04 and with the separation-of-powers principle in Article III, Section 1 of the Constitution of Virginia, must be construed to reach administrative and executive branch employees only; a reading that gave the CAO "ultimate responsibility" for legislative and judicial branch personnel as well would be an absurd result the General Assembly could not have intended.

Therefore, for the foregoing reasons, this Court declares that the power to appoint and remove

these affected legislative employees resides solely with Council.

2. The Affected City Assessor Position

[Discussion of Va. Code Section 58.1-3271 omitted here for length; the Court holds that this statute specifically vests the power to appoint the City Assessor in the governing body, i.e., Council, and that this specific statutory grant controls over the general "ultimate responsibility" language of Charter Section 5.03.]

This Court declares that Council has the exclusive power, pursuant to Va. Code Ann. Section 58.1-3271, to appoint and remove the City Assessor.

In sum, the City's Chief Administrative Officer does not have the authority to appoint and remove the affected employees. The Plaintiff is entitled to summary judgment.